

12.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	MOTION TO STRIKE 3RD AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY (OVER \$35,000) OF AUDREY LITTLE BY DEFENDANTS ROCKET CLOSE, LLC, ROCKET CLOSE, LLC (F/K/A AMROCK TITLE CALIFORNIA, INC.), AND ROCKET COMPANIES, INC.

Tentative Ruling: Oaktree also moves to strike the punitive damages allegations at TAC paragraphs 30, 41, 44, 45, 92, and 128, and Prayer paragraph 159. Oaktree argues the allegations are conclusory recitations of Civ. Code § 3294 language that do not plead “despicable conduct,” and that the corporate agent allegations fail to identify a specific officer, director, or managing agent who authorized or ratified the challenged conduct with advance knowledge under section 3294(b).

Plaintiff responds that V19 ties punitive relief to specific pleaded facts on fraud, malice, and oppression under section 3294(c), including the September 10 Notice of Claim signed by Robert R. Teague as Oaktree’s SVP/Director of Compliance and General Counsel and copied on its face to Co-CEOs Stephen Lippens and Kristopher Martin, the October 25, 2025 telephone call in which Teague allegedly threatened to report Plaintiff to the FBI to coerce payment on the disputed debt, and the December 16, 2025 autopay withdrawal after written stop instructions.

Surviving causes supply punitive predicates. The demurrer to the Seventh (fraudulent concealment), Eighth (fraudulent inducement), Fourteenth (dependent adult financial abuse), and Fifteenth (IIED) Causes of Action as to Oaktree is overruled. Each of those causes is a recognized punitive eligible tort or statutory theory. The punitive allegations are anchored to those causes and are not directed at ordinary contract or negligence theories alone.

Factual sufficiency under Civ. Code § 3294(c). Read as a whole and taken as true on a motion to strike, V19 alleges concrete conduct beyond boilerplate: an executive-level FBI referral threat by Teague, the same officer who, as Oaktree’s SVP/Director of Compliance and General Counsel, had signed the September 10 Notice of Claim acknowledging the lien position failure, autopay withdrawal after written stop instructions, and continued enforcement despite alleged knowledge of Plaintiff’s disability and warnings of medical, financial, credit, caregiver, and family harm. (TAC ¶¶ 19–21, 38–41, 124.) Whether that course rises to malice, oppression, or fraud, and whether it constitutes despicable conduct, are fact intensive questions not resolvable on a pleading motion. Oaktree’s argument that its conduct amounts to lawful loan enforcement rests on its own factual narrative, which the Court cannot adopt as true on a motion to strike.

Civ. Code § 3294(b) corporate authorization. In *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 566–67, the California Supreme Court defined managing agent status by substantial discretionary authority over corporate policy, not by title alone. V19 identifies Robert R. Teague as Oaktree’s SVP-Director of Compliance and General Counsel, the signatory of the September 10 Notice of Claim, which was copied to Co-CEOs Stephen Lippens and Kristopher Martin. It alleges that Teague and the Co-CEOs exercised substantial discretionary authority over Oaktree’s legal, claims, and enforcement decisions, and that Oaktree ratified the post-notice course through them. That is enough

at the pleading stage to place the section 3294(b) requirements at issue. Whether Plaintiff can prove by clear and convincing evidence that these actors qualify as officers, directors, or managing agents, and that they authorized or ratified the challenged conduct with advance knowledge of its wrongful character, is a merits question.

Defendant Oaktree's Motion to Strike DENIED.

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CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	MOTION FOR RECONSIDERATION OF PLAINTIFF'S PROTECTIVE MOTION FOR RECONSIDERATION AND CLARIFICATION OF JULY 21, 2026 DISCOVERY ORDER PURSUANT TO CCP § 1008(A), OR ALTERNATIVELY RENEWED MOTION PURSUANT TO CCP § 1008(B)

Tentative Ruling: No tentative ruling, a hearing shall be conducted.